THE REPUBLIC OF CORTESIA DEL MAR
SUPREME COURT

EX PARTE

YODABIRD19

&

VEDD

CASE DETAILS

CASE NUMBER: 1

COURT: Hyper_Warrior CJ, Brick_WallGaming AJ, and IceCarim AJ

DATE: 19 February 2023 (GMT)

JUDGMENT

JUDGMENT OF THE COURT: IceCarim AJ, paras [1] – [33]

ACTING JUSTICE ICECARIM delivered the judgment of the Court, in which CHIEF JUSTICE HYPER_WARRIOR and ACTING JUSTICE BRICK_WALLGAMING joined.

I. Introduction

[1] The central question in this case is whether the Constitution[1] allows a candidate to run for the office of President or Vice President on two or more different tickets.

[2] In a summary judgment, THE CHIEF JUSTICE ruled that a candidate may do so. We uphold that result but set aside his reasoning.

II. Factual background

[3] In the lead-up to the first Presidential Elections of 2023, yodabird19 declared his candidacy for President and chose Vedd as his running mate. The next day, Vedd declared his candidacy for President and chose yodabird19 as his running mate.

[4] Unsure of the constitutionality of this novel state of affairs, yodabird19 and Vedd requested the ruling of this Court. THE CHIEF JUSTICE did not find it necessary for the full court to hear the matter, and he issued a summary judgment confirming that both candidates' separate campaigns for President are valid.

III. Direct access

[5] This is the first occasion on which this Court has been called upon to hear a matter directly. This route is contemplated by Section 105(4)(a)(i), which provides that the Supreme Court may hear any matter "brought to it directly, if this is in the interests of justice".

[1] Constitution of the Republic of Cortesia Del Mar, 2022.

[6] We find it appropriate, without attempting to be exhaustive, to briefly explain why we granted direct access in this case, in hopes that our explanation may guide future courts faced with the prospect.

[7] In certain contexts, direct access ensures that poor litigants are able to approach the highest courts to finalise the adjudication of crucial issues affecting their daily lives.[2] Of course, this justification is generally not applicable to Cortesia.

[8] That does not mean, however, that we need to be conservative in granting applicants direct access. Quite the contrary. Most countries on CivMC do not frequently deal with appeals at all. Matters are usually resolved in courts that function as a forum of both first and last instance.

[9] In real life, courts often refuse direct access on the basis that they would prefer not to sit "as a court of first and last instance"[3]. By allowing cases to move along the judicial system—and thus through several courts—final courts of appeal have the benefit of the considered judgments of lower courts on which to base their decision.[4] At least theoretically, this reduces the rate of error.

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[2] Jackie Dugard (2015) Closing the Doors of Justice: An Examination of the Constitutional Court's Approach to Direct Access, 1995–2013, South African Journal on Human Rights, 31:1, 112-135, DOI: 10.1080/19962126.2015.11865237

[3] *Secretary of the Judicial Commission of Inquiry into Allegations of State Capture, Corruption and Fraud in the Public Sector including Organs of State v Zuma and Others* [2021] ZACC 18; 2021 (9) BCLR 992 (CC); 2021 (5) SA 327 (CC) at para 143 (Theron J, dissenting).

[4] *Van Vuren v Minister of Correctional Services and Others* [2010] ZACC 17; 2010 (12) BCLR 1233 (CC) at paras 38-45; *Transfer Rights Action Campaign and Others v MEC for Local Government and Housing Gauteng and Others* [2004] ZACC 23 at paras 9-16; *Satchwell v President of the Republic of South Africa and Another* [2003] ZACC 2; 2003 (4) SA 266 (CC); 2004 (1) BCLR 1 (CC) at paras 6-7; *Bruce and Another v Fleecytex Johannesburg CC and Others* [1998] ZACC 3; 1998 (2) SA 1143 (CC); 1998 (4) BCLR 415 (CC) at paras 4-9.

After all, as appellate court judges, "[w]e are not final because we are infallible, but we are infallible only because we are final."[5]

[10] Considering the rarity of appeals on CivMC, we do not think it necessary to require cases to go through such a thorough examination before we hear them. This is particularly so because the judge sitting on first instance may well also sit on appeal. A matter directly heard by this court is unlikely to differ in result from one that has been through the pipeline.

[11] This case arrives in the Supreme Court on the eve of the Presidential Elections. The issues it raises are of great public importance, and we find it appropriate to rule expediently. As far as the threshold for granting direct access is concerned, "wherever the line may be",[6] this case crosses it.

IV. The constitutionality of cross-candidacy

[12] We now turn to the central question in this case, as stated at the outset: Does the Constitution allow a candidate to run for the office of President or Vice President on two or more different tickets? For simplicity, we will refer to this as "cross-candidacy".

A. Textual analysis

[13] We were asked by the applicants to evaluate the constitutionality of cross-candidacy in terms of Section 85(7) of the Constitution. That section sets out the procedure for the registration of candidacies. True enough, it contains no prohibition against cross-candidacy.

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[5] *Brown v. Allen*, 344 U.S. 443 (1953) at 344 (Jackson J concurring in the result).

[6] *Steward Machine Company v. Davis*, 301 U.S. 548 (1937) at 591.

[14] But, so far as the text of the Constitution is concerned, Section 85(5) and (6) are more particularly relevant. These Subsections, which pertain to eligibility, instruct that candidates for the Presidency or Vice Presidency cannot hold judicial office and must not be "otherwise precluded from holding office as President [or Vice President] by or pursuant to a provision of this Constitution."

[15] Nowhere does the Constitution say that someone running for Vice President is prevented from holding office as President. Nor is anyone textually prohibited from holding office as Vice President despite running simultaneously for President. THE CHIEF JUSTICE was therefore correct to conclude that "there is nothing to specifically prohibit" cross-candidacy in the Constitution.

[16] But that does not spell the end of the matter. Section 1(2) of the Constitution proclaims that Cortesia Del Mar "is founded on a commitment to realise and advance the values that underlie a free, peaceful, and democratic society, including equality, human dignity, civil suffrage, humanity, inclusiveness, liberty, secularism, accountability, justice, and the rule of law." Section 8(1) requires courts to interpret the Charter of Rights "in a way that advances the ideal of a free, peaceful, and democratic society based on [those] fundamental values".

[17] The Constitution thus embodies an "objective value system".[7] We endorse the comments of the German Constitutional Court explaining that such a system

[7] BVerfGE 39, 1 at 41.

"acts as a guiding principle and stimulus for the legislature, executive and judiciary."[8]

[18] As Chief Justice Marshall held, 220 years ago, "[i]t is emphatically the province and duty of the Judicial Department to say what the law is.[9] We shrink from this responsibility if we ignore the value system created by the Constitution and focus only on the text.

[19] Nor are we prepared, today, to foreclose future courts from finding "that specific guarantees in the Bill of Rights have penumbras, formed by emanations from those guarantees that help give them life and substance."[10] And, indeed, to do so would be flatly unconstitutional, for Section 7(5) explicitly envisages rights that are "necessarily inferred from a provision of [the] Constitution."

B. Is cross-candidacy compatible with democracy?

[20] The constitutional value most obviously implicated by cross-candidacy is democracy. Our narrow task is to determine whether cross-candidacy is compatible with our Nation's democratic aspirations.

[21] The Constitution of the United States of America enshrines a similar principle. According to Article IV of that constitution, the federal government must "guarantee to every State in [the] Union a Republican Form of Government".

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[8] Id.

[9] *Marbury v. Madison*, 5 U.S. (1 Cranch) 137 (1803) at 177.

[10] *Griswold v. Connecticut*, 381 U.S. 479 (1965) at 484.

[22] But the Supreme Court of the United States has consistently held that the clause just read is not enforceable by courts.[11] In *Rucho v Common Cause*,[12] Roberts CJ explained that "the Guarantee Clause does not provide the basis for a justiciable claim".[13] This conclusion forms part of the "political questions" doctrine developed by the US Supreme Court, which maintains that issues such as whether a State government is "Republican", whether a State's election districting is compatible with democracy,[14] and whether an impeachment was property conducted,[15] fall outside the functional area of courts. In the view of the US Supreme Court, these issues are best left to legislatures.

[23] We are not minded to follow this approach. Cortesia's constitutional system greatly differs from that of the US. As we said earlier, our task in this case is relatively straightforward: We must determine if cross-candidacy consists with the constitutional vision for democracy. The contents of that vision, as they relate to our task, are objectively ascertainable from the text of the Constitution. Our decision is based on what the Constitution says—no more and no less.

[24] Article 11 supplies us with some substance to the constitutional value of democracy. In relevant part, it provides that:

> "(1) Every citizen has the right—
>
> (a) to vote in free and fair—
>
> (i) elections for any elected public office; and

[11] *Luther v. Borden*, 48 U.S. (7 How.) 1 (1849); *Pacific States Telephone & Telegraph Co. v. Oregon*, 223 U.S. 118 (1912).

[12] 588 U. S. ____ (2019).

[13] Id at 30.

[14] Id.

[15] *Nixon v. United States*, 506 U.S. 224 (1993).

(ii) national referendums;

(b) to stand in an election for any elected public office; and

(c) to hold office if elected.

…

(4) The formation of political parties is prohibited.

…

(6) Except where this Constitution specifies otherwise, no law may limit the right to stand in an election for an elected public office established in this Constitution."

[25] These provisions generally support the cross-candidacy in which the present applicants are engaged. For instance, citizens are entitled "to stand in an election for any elected public office", and "no law may limit the right to stand in an election for an elected public office established in [the] Constitution". When a citizen runs for the office of President on one ticket and the office of Vice President on another, they are always at the end limited to holding at most one or the other.

[26] This sort of candidacy does not necessarily inflate a candidate's chances of holding office. But in elections where the only available presidential candidates are the other's vice-presidential candidate, democracy is not diminished either. Voters are given the choice to express their preference for which of the two candidates they think should hold the higher office of President. Indeed, where the pool of citizens is limited, cross-candidacy may be necessary to keep elections competitive—and thus to enhance accountability.

[27] It may be true that cross-candidacy has a propensity to confuse voters into choosing the wrong order of candidates. But we have been given no evidence to this effect, and are unable to strike down the cross-candidacy at issue through our own speculation.

[28] Our judgment today expresses no opinion on whether the National Forum may one day pass legislation to prohibit cross-candidacy. It may be so that evidence will eventually be available to cast doubt on the democratic status of cross-candidacy. Until that day, we find it consistent with the Constitution.

[29] But the constitutional position is different as regards a candidate running for President (or for Vice President) on multiple tickets. That is likely to impermissibly increase the candidate's chances of winning. However, since we do not have arguments on that question, and considering the short time we have had to consider the present case, we find it most appropriate to confine our findings to cross-candidacy involving a citizen who runs for President on one ticket and Vice President on another.

V. Conclusion

[30] For the given reasons, we affirm the constitutionality of cross-candidacy, but only in the narrow circumstances presented in the case before us. That is, we decide only that it is permissible for a citizen to run for President on one ticket and Vice President on another. We rule no further than that.

[31] It remains only for us to consider the appropriate order to issue. Section 109(1) of the Constitution permits us to "may issue any effective and equitable order in the decision of matters involving the application of this Constitution."

[32] A declaration of the applicants' right to engage in cross-candidacy in the way that they did seems to us the most effective order in this case.

VI. Order

[33] We issue the following order:

(1) Leave for direct access is granted.

(2) The summary judgment of THE CHIEF JUSTICE in this case is affirmed in part and reversed in part.

(3) It is declared that the Constitution permits an eligible citizen to run for President on one ticket and Vice President on another.